01 / FOUNDATIONS

The ideas behind the cases

Learn the legal framework first, then connect each case to its constitutional question.

Source transparency: unmarked explanations synthesize the supplied files. **[A]** marks facts added beyond them, including answers whose factual content is missing from the files; **[C]** corrects an error or misleading simplification. A label on a whole section applies throughout it. All practice examples are newly written.

Four sources of American law

Constitutional law: the meaning of constitutions, government powers and individual rights. The first ten amendments to the U.S. Constitution form the **Bill of Rights**.
Statutory law: laws passed by legislatures; statutes may restrict conduct or grant rights and benefits.
Administrative law: the authority, procedures and actions of public agencies. Agencies must stay within their legal powers.
Case law: rules and interpretations developed in judicial decisions. A **precedent** helps govern later cases involving similar legal questions.

[C] Two corrections to S1: Congress consists of the **House of Representatives and the Senate**; both chambers pass the same bill text before presidential consideration. Federal and state governments have different powers; valid federal law prevails over conflicting applicable state law. A simple "Federal > State > Local" ladder leaves out this division. [E6]

The Fourteenth Amendment

Equal protection: central to Plessy and Brown. A state may not deny equal protection of the laws. **[C]** The protection covers **persons** within its jurisdiction, not only U.S. citizens. [E6]
[A] First Amendment freedoms also apply to state action through the Fourteenth Amendment in the flag-salute cases. [E2-E3]

Liberty and legal principles

Civil liberties protect freedom against government interference. **[A]** Civil rights emphasize equal treatment and protection against discrimination.
Due process opposes arbitrary government action; the **adversarial system** allows opposing parties to present their cases. In criminal proceedings, the prosecution bears the burden of proving guilt.

THE FOUR-CASE MAP

1896 | PLESSY	Racial separation may be constitutional if facilities are equal.
1940 | GOBITIS	The Court upholds the school flag-salute requirement. [A]
1943 | BARNETTE	The Court rejects compelled patriotic expression. [A]
1954 | BROWN	Racially segregated public education is inherently unequal.

Based on S1, slides 2-13; S4, slides 2-7; S6-S8. Added/corrected material: E2-E6.

02 / RACIAL SEGREGATION

Plessy and Brown

The central issue: can legally enforced racial separation provide equality?

Plessy v. Ferguson (1896)

Holding: segregation upheld | Vote: 7:1 [A/C] | Majority: Justice Henry Brown

Facts

Louisiana required separate railway cars for Black and white passengers. A citizens' committee arranged a test of the law. Homer Plessy sat in a whites-only car, refused to move and was arrested. **[C]** The law dates from **1890**; the arrest occurred in **1892**.

Constitutional question

Did enforced racial separation deny the **equal protection of the laws** guaranteed by the Fourteenth Amendment? **[A]** Plessy also raised a Thirteenth Amendment objection, which the Court rejected.

Reasoning and dissent

The majority distinguished legal and political equality from social equality. It treated separation as compatible with equal civil rights. **Justice John Marshall Harlan dissented:** the Constitution did not permit the state to divide citizens into racial classes.

Rule and significance

Separate but equal supported segregation so long as separate facilities were supposedly equal. The ruling provided legal support for further segregation laws. **[A/C]** The vote was 7:1: Justice Brewer did not participate. Do not infer 8:1 simply because the Court had nine seats.

Sources: S7, pp. 1-2; corrections and added constitutional/voting details: E1.

Brown v. Board of Education (1954)

Holding: school segregation unconstitutional | Vote: 9:0 [A] | Chief Justice Earl Warren [A]

Facts and arguments

Black parents and children, supported by the NAACP, challenged separate public schools. In Topeka, Linda Brown could not attend a nearby whites-only school. The families argued that racial separation itself denied equality; equal buildings and equipment would not cure the harm.

Constitutional question

Does segregation in public education violate the Fourteenth Amendment even when physical facilities and other material conditions are equal? **Yes.** The Court held that segregated public education denies equal protection.

Reasoning

Education is essential to participation and success in society. State-enforced separation marks Black children as inferior and undermines equal educational opportunity. **Separate educational facilities are inherently unequal.** Equality therefore requires more than matching material resources.

Significance and limits

Brown rejected Plessy's doctrine **in public education**, 58 years later. **[A]** Brown II (1955) addressed implementation; the 1954 decision did not instantly desegregate every school. **[C]** Brown changed a precedent in a different dispute; it was not an appeal in Plessy's own case.

Sources: S6, p. 1; S7, p. 2; S8, p. 1. Added author, vote and implementation: E4.

Compare: Plessy accepted supposed equality of separate facilities. Brown held that separation itself creates unequal educational opportunity. **[C]** Brown rejected the doctrine in public education in 1954.

Gobitis and Barnette

A change of precedent: from deference to school authorities to protection against compelled speech.

Minersville School District v. Gobitis (1940)

ADDED explanation | The 8:1 vote and Frankfurter's authorship are already stated in S3

Facts [A]

Lillian and William Gobitas attended public school in Pennsylvania. As Jehovah's Witnesses, they viewed the flag salute as idolatry. They refused the daily salute-and-pledge ceremony and were expelled. **Gobitas** was the family's name; **Gobitis** became the official case name after a spelling error. [E12]

Question and procedure [A]

Did religious liberty require a public school to grant an exception from a compulsory salute? The First Amendment applied against state action through the Fourteenth. The district court protected the family; the court of appeals affirmed. The Supreme Court **reversed**. [E2]

Holding and reasoning [A]

The Court ruled **8:1 for the school**. Justice Felix Frankfurter accepted national unity as an educational objective and deferred to elected authorities. Sincere religious belief did not, in the majority's view, automatically excuse compliance with the general requirement. [S3; E2]

Dissent and context

[A] Justice Harlan Fiske Stone objected to forced expressions contrary to conscience; patriotism could be taught without compelling belief. [E2]
S4 describes subsequent harassment and violence against Jehovah's Witnesses, including public humiliation and forced relocation. [S4, slide 13]

Sources: S3, Gobitas section; S4, slides 10-13. Added facts: E2, E12.

West Virginia State Board of Education v. Barnette (1943)

ENTIRE SECTION ADDED | The topic is assigned, but the supplied files do not explain the case

Facts and lower court [A]

West Virginia required public-school pupils to salute the flag and recite the pledge. Jehovah's Witness families challenged the requirement. In October 1942, the district court prohibited officials from compelling the plaintiffs' children and other religious objectors to salute or excluding them for refusing. This was an **injunction**: an order restraining official action. [E13]

Constitutional question [A]

May government force pupils to express an officially prescribed belief? The case concerned **speech and conscience** under the First and Fourteenth Amendments. [E3]

Holding and reasoning [A]

The Court ruled **6:3 for the families**. Justice Robert H. Jackson reasoned that a flag salute communicates ideas: forcing it is **compelled speech**. National unity did not justify compulsory agreement on matters of opinion. Protection was **not limited to religious objectors**. [E3]

Dissent and significance [A]

Frankfurter defended judicial restraint and elected institutions; Roberts and Reed also dissented. The Court **affirmed** the injunction and **overruled Gobitis** as precedent. [E3] The cases show that constitutional interpretation can change even when the written provisions remain the same. [E14]

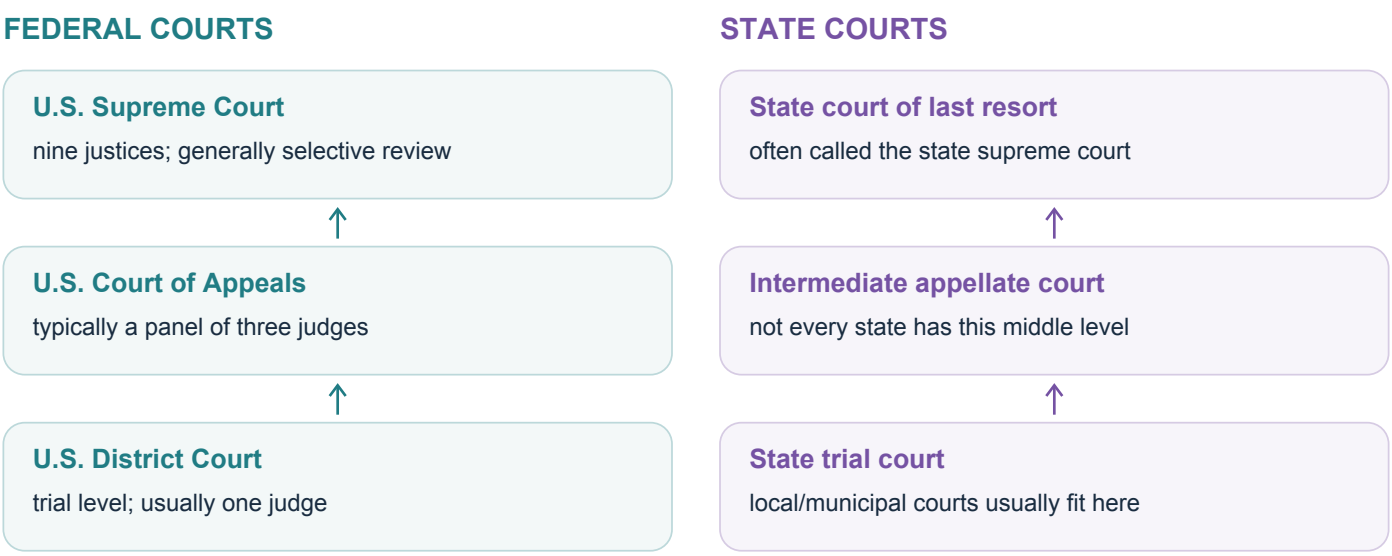
Added section: E3, E13-E14. S3-S4 supply Gobitis context, not a Barnette explanation.

[A] Reverse changes the judgment under review; **overrule** rejects an earlier legal rule. Barnette affirmed the lower judgment while overruling Gobitis. [E3, E14]

04 / COURT STRUCTURE

Two systems, different roles

The diagram shows typical levels. State names and procedures vary.



Trial courts establish the record

A trial court hears evidence and witnesses and initially determines the facts. **[A]** A judge conducts proceedings and applies law; where a jury is used, it decides factual questions. [E7]
An appellate court normally works from that existing record. It does not begin a new trial with a new jury and new witnesses.

State and federal independence

There are **13 federal courts of appeals**: 12 regional circuits and the specialized Federal Circuit.
[C] A state case does not ordinarily move up to a federal district court on appeal. Local courts generally belong within the state system, rather than forming a third nationwide parallel hierarchy.

[A/C] The connection: the U.S. Supreme Court may review a qualifying final state-court judgment involving federal law. Its interpretation of federal law binds state courts. **[A]** State highest courts have final authority on their own state law. [E5, E10]

Jurisdiction = authority to hear and decide a case

Federal question: a claim arising under the U.S. Constitution or federal law.
Diversity jurisdiction: can allow a federal court to hear a state-law civil dispute involving parties with different state citizenship and an amount in controversy **over $75,000**.
[A] Ordinary diversity requires **complete diversity**: no plaintiff shares state citizenship with any defendant. The amount excludes interest and costs. [E9]

[A] Important overlap: state courts can hear many federal-law claims unless Congress assigns exclusive federal jurisdiction. A federal question does not always mean the case must start in federal court. [E10] **[C]** Seriousness or a large sum alone does not turn a state crime into a federal case.

Source basis: S2, slides 3-21; S5, p. 1. Added or corrected points: E5, E7, E9-E10.

05 / APPEALS

From judgment to review

An appeal usually reviews claimed errors in a decision; it is not a second trial.

1 | Begin in a court with jurisdiction

In a civil lawsuit, the **plaintiff** brings a claim against the **defendant**. The trial court builds a record and decides the dispute. Do not confuse these trial-level labels with the labels on appeal.

2 | Ask an appellate court to review

The losing party normally has a first appeal. The party seeking review is the **appellant**; the opposing party is the **appellee**. Either original party may be the appellant, depending on who appeals.

3 | Review the existing record

A typical federal appellate panel has **three judges**. There is no jury, no new witnesses and no new presentation of evidence. The judges examine the challenged decision using the trial record and legal arguments.

4 | Understand the result

AFFIRM

Allow the challenged decision to stand.

REVERSE

Overturn the challenged decision.

REMAND

Return the case for further proceedings.

[C] A remand does not automatically restart the whole case. The lower court follows the appellate court's instructions.
[A] A reversal and a remand can occur together. [S2, slide 15; S5, step 6; E7]

5 | Seek Supreme Court review

A party may file a **petition for a writ of certiorari**. **[A]** The petition is the request; the writ is the order calling for the lower court's record. The Supreme Court generally chooses whether to take the case.
[A] Cert. denied means review was declined. The lower judgment remains in place; denial does not itself endorse its reasoning. [E7, E11]

[A] Practice example: Business A sues Business B over a federal-law claim. A loses and appeals: A is now appellant, B appellee. If the appellate court affirms, A may seek certiorari. If review is denied, the lower judgment remains in place. This is a new study example adapted from S5.

S5: model answers using S2 vocabulary

1 District Court / plaintiff / defendant; **2** verdict; **3** appeal / Court of Appeals; **4** appellant / appellee; **5** three; **6** reverse / remand; **7** affirm / writ of certiorari; **8** Supreme Court / nine / landmark decision / precedent.

[C] These are the worksheet's expected terms. A victory is not automatically a landmark. Its trademark example is historical: *Matal v. Tam* (2017) invalidated the disparagement restriction. A trademark is not a patent. [E8]

Source basis: S2, slides 13-16, 18-21; S5, p. 1. Added/corrected: E5, E7-E8, E11.

06 / ENGLISH-ENGLISH VOCABULARY

Courts, procedure and law

Definitions explain the terms in English. Bold entries match the vocabulary and concepts in the materials.

U.S. Supreme Court
The highest court in the federal judicial system; distinguish it from a state supreme court.

U.S. District Court / trial court
A trial court initially hears evidence and determines facts. U.S. District Courts are federal trial courts.

Court of Appeals / appellate court
A court reviewing decisions from lower courts.

Jurisdiction
A court's legal authority to hear and decide a case.

Amount in controversy
The monetary value at issue in a legal dispute.

Plaintiff
The party bringing a civil lawsuit.

Defendant
The party being sued; **[A]** in a criminal case, the accused person.

Appellant
The party asking a higher court to review a lower decision.

Appellee
The opposing party in an appeal.

Appeal / appealed
A request for higher-court review / asked for that review.

Verdict
A trial determination, typically made by a jury. **[A]** It is not always identical to a judgment.

Judgment [A]
The court's formal decision resolving the parties' dispute.

Affirm
Allow the challenged lower-court decision to stand.

Reverse
Overturn the decision in the particular case under review.

Remand
Send a case back to a lower court for further proceedings.

Writ of certiorari
[A] An order calling for a lower court's record for review; a petition asks for that order.

Landmark decision
A particularly important ruling with a significant effect on the law.

Precedent
An earlier decision used in later cases involving similar legal questions.

Constitutional law
Law concerning constitutions, government powers and individual rights.

Statute / statutory law
A law passed by a legislature / law made through statutes.

Administrative law
Law governing the powers, procedures and actions of public agencies.

Case law
Legal rules and interpretations developed through judicial decisions.

Amendment
A formal change or addition to a constitution.

Bill of Rights
The first ten amendments to the U.S. Constitution.

Bill / veto
A bill is a proposed law; a veto is the President's rejection of a bill passed by Congress.

Adversarial system
A system in which opposing parties present their cases before a court.

Presumption of innocence
A criminal defendant is treated as innocent until guilt is proved.

Burden of proof
The responsibility to establish a claim with sufficient evidence.

Source basis: S1, slides 2-13; S2, slides 8-21; S5. Added precision in selected entries: E7.

07 / VOCABULARY IN CONTEXT

Use the ideas in an answer

Case language, the five required S8 sentences and model responses to its comprehension questions.

Segregate / segregation
Separate people into groups, here according to race.

Facility / facilities
Buildings, services or equipment used for a particular purpose.

Sue / sued
Bring a civil claim against someone / brought such a claim.

Separate but equal
The doctrine accepting racial separation if facilities were supposedly equal.

Equal Protection Clause
The Fourteenth Amendment's prohibition on a state denying equal legal protection.

Civil rights [A]
Rights protecting equal treatment and participation without unlawful discrimination.

Civil liberties
Fundamental freedoms protected against government interference.

Due process of law
Protection against arbitrary government action.

Procedural due process
Fair procedures when government affects protected rights.

Substantive due process [C]
Limits on government interference with certain protected rights, even with procedures.

Compelled speech [A]
Expression that government requires a person to make or affirm.

Overrule [A]
Reject the legal rule of an earlier case as a precedent.

Dissent / dissenting opinion
A judge's explanation of disagreement with the majority.

Prosecution
The government side bringing a criminal case.

S8: five original practice sentences
Public schools **segregated** children by race.
The case concerned separate school **facilities**.
Plessy established a **precedent** for segregation.
The parents **sued** the school board.
The losing party **appealed** the decision.

S8: MODEL COMPREHENSION ANSWERS

1 | What does the Fourteenth Amendment protect?
For these cases, the key protection is equal protection of the laws. **[C]** It protects persons within a state's jurisdiction, not only U.S. citizens. [E6]

2 | What problem did Linda Brown face?
She could not attend a nearby school because it was reserved for white children. Black families had to use segregated schools instead. [S6, S8]

3 | How are Plessy and Brown connected?
Plessy accepted separate but equal. Brown rejected that doctrine in public education: separation itself denied equal educational opportunity. [S6-S7]

4 | What were the competing ideas of equality?
One view accepted separate facilities if materially equal. The other held that enforced racial separation itself creates inequality, so matching buildings or equipment is insufficient. [S6-S7]

Definitions: S1, S4, S6-S8; added/corrected precision: E3, E6, E14. Answers are study responses, not worksheet quotations.

08 / EVIDENCE AND ACCURACY

Sources and corrections

All eight original files were reviewed. External links support the additions and corrections.

How provenance works: a question in a blank worksheet does not supply its answer. Most Gobitis explanations and the whole Barnette brief are therefore marked **ADDED**. Definitions and practice sentences are original study wording. The guide selects the material relevant to the assigned quiz.

THE EIGHT SUPPLIED MATERIALS

S1 Sources of AmLaw - Year I Moodle(1).pptx
Slides 2-13: sources of law and principles.

S2 American Court System 2020(1).pptx
Slides 3-21: systems, jurisdiction and appeals.

S3 Video Worksheets - Liberty(1).docx
The Gobitas Children and the Pledge section.

S4 Liberties - Year I Moodle(1).pptx
Slides 2-7 and 10-13: liberty and Gobitis context.

S5 So, Youre Going to Court Worksheet(1).pdf
Page 1: procedural terms and historical exercise.

S6 Reading 1 - Brown v. Board of Education(1).pdf
Pages 1-2; main case explanation on page 1.

S7 Plessy v. Ferguson - Reading and Response(1).pdf
Pages 1-2: case and comparison with Brown.

S8 HW - Vocabulary and Concepts(1).pdf
Page 1: five vocabulary items and four questions.

EXTERNAL VERIFICATION

E1 National Archives: Plessy, judgment and context

E2 Library of Congress: Gobitis, 310 U.S. 586

E3 Library of Congress: Barnette, 319 U.S. 624

E4 National Archives: Brown and Brown II context

E5 U.S. Courts: federal/state comparison; appeals

E6 National Archives: Constitution, Arts. I and VI; 14th Amendment

E7 U.S. Courts: Glossary of Legal Terms (selected precision checks).

E8 Supreme Court: Matal v. Tam (2017) (trademark restriction).

E9 28 U.S.C. § 1332; Fourth Circuit: complete diversity

E10 Congressional Research Service: Federal and State Courts: Structure and Interaction (pp. 2, 20).

E11 Supreme Court: Missouri v. Jenkins, 515 U.S. 70, 85 (certiorari denial).

E12 Library of Congress: A Matter of Conscience (William Gobitas's letter and archival context).

E13 National Archives / DocsTeach: Barnette final decree, 1942 (record 279139).

E14 Federal Judicial Center: The Flag Salute Cases (2017) (official historical synthesis and primary records).

Accuracy reminders

Plessy: 1890 law, 1892 arrest, 1896 judgment; vote 7:1, not an assumed 8:1. **Brown:** public education, 1954; do not treat 1964 as the sole end date for segregation. **Appeals:** remand does not mean an automatic restart; certiorari is not guaranteed. **Vocabulary:** reverse and overrule address different things; a landmark is not simply any victory.

External sources checked: 4 November 2026. A = added beyond supplied files; C = correction of supplied wording.